

Banez 1602 (ES-EN)

Relación de los actos de Valladolid —
Respuesta a un informe de los PP.
Jesuitas acerca de las “tesis de Alcalá”
(*Excerpta*)

by Domingo Báñez, O.P. (1528–1604), written 1602; first published 2019

Source: David Torrijos-Castrillejo, “Un manuscrito inédito de Domingo Báñez: Respuesta del P. Báñez a un informe de los PP. Jesuitas acerca de las ‘tesis de Alcalá’ (si es de fe o no que este hombre sea el Romano Pontífice),” *Revista Española de Teología* 79 (2019) 93–126.

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- This file gives the pivotal passages only, quoted (with the editor’s italicization of Báñez’s Latin) from the Torrijos-Castrillejo edition, to which the reader is referred for the complete text with introduction and apparatus. The full English translation of the Respuesta is in the companion file.
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The Jesuit report names the “authorities” for the Alcalá thesis (P.3). P.3. Desta prision de los nuestros y citacion de los Doctores de Alcala resulto el revolver autores que tratasen desta materia y averiguar quienes eran los de la opinion que defendieron los de Alcala y aunque se hallaron muchos que	P.3. From this imprisonment of ours and the citation of the Alcalá doctors it followed that authors treating this matter were ransacked to ascertain who held the opinion the Alcalá men defended; and although many were found who hold it or account it probable, among them Fathers of St. Dominic — namely Cajetan, Torquemada, Cano, a Fray Pedro in

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la tienen o la dan por probable y entre ellos Padres de S. Domingo que son Cayetano, Turrecremata, Cano, Fr. Pedro en su canonica y el Mo. Báñez. Pero el que mas de proposito la disputa es el Mo. Báñez a dicho de todos los que los han visto aunque algunos de sus Frailes han querido decir que no tiene sino la contraria, porque no le han entendido.

Báñez defends Cano against the misreading (R.3). [...] pero en lo que toca a Fray Melchor Cano, por haber sido mi preceptor, digo que se engañan los que dicen que absolutamente afirma *non esse de fide hunc hominem legitime electum ab ecclesia unanimiter absque schismate acceptum esse summum Pontificem*, porque sin duda ninguna habla *de fide immediate*, y aunque cuando escribo no he hallado el lugar donde trata esta dificultad, pero pondrase en la margen en hallando el lugar (Cano, lib. 6, cap. 8). [...] Lo que podria ser es que hablasen *de fide immediate*; pero que nieguen ser *de fide saltem mediate* no lo creo.

The misquoted “solum ex humana prudentia” passage was a tentative, conditional solution (R.3). Dicen que en la columna 142 digo: “*quapropter ad argumentum principale possumus respondere 4. quod etiam [post] summi Pontificis et concilii definitionem solum habetur ex humana prudentia et evidente inquisitione aut etiam ex infusa prudentia cui potest subesse falsum speculative quod hic est summus Pontifex*”. De aqui infieren que yo afirmo no ser *de fide ni immediate ni mediate quod hic est summus*

his canonica, and Master Báñez. But the one who disputes it most fully is Master Báñez, by the account of all who have seen them — though some of his friars have wished to say he holds only the contrary, because they have not understood him.

[...] but as to Fray Melchor Cano, since he was my teacher, I say that those are mistaken who say he absolutely affirms *non esse de fide hunc hominem legitime electum ab ecclesia unanimiter absque schismate acceptum esse summum Pontificem* (that it is not of faith that this man, legitimately elected by the Church and unanimously accepted without schism, is the supreme Pontiff); for without any doubt he speaks *de fide immediate* — and though as I write I have not found the place where he treats this difficulty, it shall be put in the margin when the place is found (Cano, bk. 6, ch. 8). [...] It may be that they spoke *de fide immediate*; but that they deny it to be of faith *saltem mediate* (at least mediately), I do not believe.

They say that at column 142 I write: “*therefore to the principal argument we can answer, fourthly: that even after the definition of the supreme Pontiff and of a council, that this man is the supreme Pontiff is held only from human prudence and evident inquiry, or even from infused prudence, under which a speculative falsehood can lie*.” From this they infer that I affirm it is of faith neither immediately nor mediately that this man is the supreme Pontiff, since that exclusive “*solum*” shuts out every other ground of believing. I do not think they can put the argument more forcibly than I put it here. I answer

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Pontifex, pues aquella exclusiva “*solum*” excluye otra cualquiera razon de creer *quod hic est summus Pontifex*. No creo que pondran ellos el argumento con mas fuerza que yo aqui le pongo. Respondo primeramente que aquella 4. solucion no es mi resolutoria respuesta, y por eso dije “*possumus respondere*” porque iba tentando los modos que hay de decir admitiendo el caso de la condicional *disputationis gratia* que el tenido por Pontifice no estuviese baptizado [...] Pero porque *condicionalis nihil ponit in esse* sino es la *consecuentia*, no hay razon porque tomar de alli resolucion de mi sentencia. Respondo lo 2. que la dicha 4a solucion califico y doy por obscura en el § siguiente: “*veruntamen haec 4 solutio explicatione opus habet*” [...]

His actual resolution: In II-II q. 1 a. 10, col. 143 §

nihilominus. valde temerarium esset et scandalosum si postquam Ecclesia acceptaverit aliquem in summum Pontificem negaret aliquis, illum esse summum Pontificem verum nisi ostenderet illum non esse baptizatum aut non esse virum alioquin; non solum esset vehementer suspectus de heresi, sed etiam ut hereticus merito puniretur.

The printed Valladolid conclusion (Assertio 3ª, 2 July 1602). *Sanctissimo D. N. Clementi VIII, Romano Episcopo ac proinde Petri successori et Christi Vicario in terra, Dominicus Báñez. Assertio 3.ª Fidelium Ecclesia in statu revelatae legis gratiae, sicut nulli nobilior et sanctor est quam in omni alio statu, ita*

first that that fourth solution is not my resolatory answer — that is why I said “*possumus respondere*” (we can answer) — for I was testing the available ways of speaking, admitting for the sake of argument the conditional case that the one held for Pontiff were not baptized [...] But since “*a conditional posits nothing in being*” except the consequence, there is no reason to take from it the resolution of my view. I answer secondly that I qualify that fourth solution and declare it obscure in the following section: “*however, this fourth solution needs explanation*” [...]

It would be highly rash and scandalous if, after the Church has accepted someone as supreme Pontiff, anyone were to deny that he is the true supreme Pontiff, unless he could show him not to be baptized or not to be a man; otherwise he would be not only vehemently suspect of heresy, but would even deservedly be punished as a heretic.

To our Most Holy Lord Clement VIII, Roman Bishop and therefore successor of Peter and Vicar of Christ on earth, Domingo Báñez. Assertion 3. The Church of the faithful in the state of the revealed law of grace, as it is nobler and holier than in any other state, so too has a more perfect unity joined with excellent universality; whence it is deservedly named catholic and

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et perfectiorem unitatem cum excellenti universalitate coniunctam habet; unde merito catholica et apostolica nuncupatur. Huius Ecclesiae individuatio non per se ab hoc individuali Romano Episcopo desumitur, sed a visibili subiectione fidelium baptizatorum ad Apostolicam Sedem et in ea pro tempore sedentem desumitur. Fidei catholicae infusum lumen ad plures veritates immediate inclinatur; quarum una est, praefatam Ecclesiam visibilem et singularem, esse veram Christi Ecclesiam. Hunc autem singularem hominem, v. gr. Clementem VIII, esse Christi Vicarium, tametsi non per se primo et immediate infusa fides credit, tamen per se secundo tam firmum assensum efficit, ut qui id negaverit vel in dubium practice verterit, non solum ut valde temerarius et scandalosus, sed ut suspectus de haeresi immo et errans contra fidem merito puniretur.

Cano's argument, reported as unanswerable at the Jesuits' counter-act (R.13). Y el

argumento fue este: *Argumento Dni. Cano: Ista conclusio Clemens 8 est summus Pontifex colligitur ex una immediata de fide et altera cognita lumine naturali per evidentem consequentiam; ergo non est per se primo et immediate de fide.* El antecedente es evidente; la consecuencia se prueba porque *non aliunde habetur certitudo illius conclusionis singularis* como evidentemente lo probaron los replicantes [...]

No falsehood can underlie faith per se secundo (R.13).

Pero yo en mi conclusion 3 califico y censuro la sentencia

apostolic. The individuation of this Church is not taken per se from this individual Roman Bishop, but from the visible subjection of the baptized faithful to the Apostolic See and to him who for the time sits upon it. The infused light of Catholic faith inclines immediately to several truths, of which one is that the aforesaid visible and singular Church is the true Church of Christ. But that this singular man, e.g. Clement VIII, is the Vicar of Christ — although infused faith does not believe it per se primo and immediately, nevertheless it produces per se secundo so firm an assent that whoever denied it, or practically turned it into doubt, would deservedly be punished not only as highly rash and scandalous, but as suspect of heresy, nay as erring against the faith.

And the argument was this: *Master Cano's argument: the conclusion "Clement VIII is supreme Pontiff" is gathered from one premise immediately of faith and another known by the natural light, through an evident consequence; therefore it is not of faith per se primo and immediately.* The antecedent is evident; the consequence is proved because *the certitude of that singular conclusion is had from nowhere else* — as the repliers evidently proved [...]

But I, in my third conclusion, qualify and censure the contrary opinion, as is contained in it and as I have it printed in my book at column 143 §

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contraria como en ella se contiene y en mi libro en la columna 143 § *nihilominus* la tengo impresa y como es razon se diga y se enseñe lo que determinada y necesariamente se ha de creer de cualquier Pontífice de quien consta por experiencia que esta legítimamente electo y aceptado por tal en comun consentimiento de la iglesia catolica, y no dejar lugar para que el atrevido diga lo que se le antojare [...] *Item*, el P. M. Negrón insto contra lo que dicen en la ultima conclusion, *sclt. neque vero satisfieri censemus ab his qui dicentes hoc esse secundario de fide concedunt posse illi subesse falsum*. Preguntandoles que quienes eran estos que tal decian porque queria acusarlos al Sto. Oficio, y lo mismo haria yo si supiese quien tal dice y si no fuera porque tan claramente se contiene en mi doctrina que *fidei neque per se primo neque per se secundo potest subesse falsum neque practice neque speculative ut patet* en mi 2.2. quest. 2, art. 3, dub. 2, y en Cayetano 2, columna 144 § *et si quis*, pudiera sospechar que lo decian por mi.

nihilominus; and as it is right that there be said and taught what is determinately and necessarily to be believed of any Pontiff of whom it is known by experience that he is legitimately elected and accepted as such by the common consent of the Catholic Church, leaving no room for the bold man to say whatever he fancies [...] Likewise, Fr. Master Negrón pressed against what they say in the last conclusion, namely: *nor do we think satisfaction is given by those who, saying this is secondarily of faith, concede that a falsehood can lie under it* — asking who these were who said such a thing, because he wished to accuse them to the Holy Office; and so would I, if I knew who says such a thing — and were it not that it is so clearly contained in my doctrine that *under faith neither per se primo nor per se secundo can a falsehood lie, neither practically nor speculatively, as appears* in my [commentary on] II-II q. 2 a. 3 dub. 2, and in Cajetan, column 144 § *et si quis*, I might suspect they said it of me.